

Syed Naushad v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 20.2.2023 · WRIT-C No. 5716 of 2023 · **Petition disposed; recovery withdrawn; fresh order after hearing under the Supply Code.**

HEADNOTE

Respondent no. 2 stated that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner. The writ was disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The prayer to quash the notification dated 27.6.2006 was not pressed, and the Court did not decide whether the withdrawn recovery was contrary to the Electricity Act, 2003.

FACTUAL SUMMARY

Syed Naushad petitioned the Allahabad High Court against the State of U.P. and another. Among the reliefs were quashing of a notification dated 27 June 2006 and of a recovery certificate, which he said was illegal and contrary to the Electricity Act, 2003. At the hearing he did not press the notification challenge and confined the petition to the recovery certificate. Counsel for respondent no. 2 stated that the impugned recovery had been withdrawn and that a fresh order would follow after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of recovery

HOLDING

On the respondent's statement that the impugned recovery stands withdrawn and that a fresh order will be passed after hearing the petitioner, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The order names the U.P. Electricity Supply Code, 2005 and no clause number.

PRINCIPLE TAGS

recovery-withdrawn-fresh-order-under-supply-code Respondent no. 2 withdrew the impugned recovery and undertook a fresh order after hearing. The petition was disposed of with liberty to pass that order strictly under the procedure prescribed by the U.P. Electricity Supply Code, 2005. No clause was construed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUASHING OF THE NOTIFICATION DATED 27.6.2006

The first prayer was not pressed at the hearing. ¶ 1

NOT DECIDED — WHETHER THE WITHDRAWN RECOVERY CERTIFICATE WAS ILLEGAL OR CONTRARY TO THE ELECTRICITY ACT, 2003

The recovery was withdrawn by respondent no. 2. The Court did not decide its legality. ¶ 1